

**CH-02_Legal Aspects &
Ch-04_OSHA Regulations
Homework Answers**



01

The legal responsibilities of an employer with regards to health and safety include what?

- A. Charging employees for replacing damaged or lost PPE
- B. Taking out additional insurances for dangerous work
- C. Providing safe place of work for all employees
- D. Ensuring that only one member of staff works on a dangerous job



02

Four liability theories can render a defendant liable for Injuries they may have caused. These are intent, recklessness, negligence, and _____ .

- A. Criminal behavior
- B. Ignorance
- C. Strict liability
- D. Poor management



03

Which of the following is not a tort?

A. Battery

B. Assault

C. Negligence

D. Breaking a contractual agreement



04

Which one of the following lists presents the three major categories of "legal liability" for a business?

- A. Reputational liability, res ipsa loquitur torts, gross negligence
- B. Criminal wrongs, product liability, intentional interference
- C. Knowing liability, breach of contracts, liability without fault
- D. Contractual liability, torts, criminal liability



05

Which is the first event in a product liability lawsuit?

A. Complaint

B. Discovery

C. Trial

D. Settlement

06

A retailer sold bread that was labeled as “Gluten Free”. Unfortunately, the bread was made with wheat flour and contained large amounts of gluten.

The retailer knew the bread actually contained gluten. Customers with celiac disease that consumed the bread became very sick.

Which liability theory may be used to sue the retailer?

- A. Warranty
- B. Negligence
- C. Strict liability
- D. All of the above

3 Types of Warranties

- ☒ Express Warranty
- ☒ Implied Warranty
- ☒ Extended Warranty



07

In late 1991, which vaccine was made mandatory by OSHA for personnel at risk of exposure to bloodborne pathogens?

A. Tetanus

B. HIV

C. HBV

D. HAV



08

The first step to establishing a confined space entry program is to:

- A. Review loss history to discover unknown confined spaces
- B. Develop written policies and procedures to ensure only qualified and competent workers enter confined spaces
- C. Identify who is part of the confined space hazards analysis team
- D. Survey and document all areas that are confined spaces



09

The lockout tagout standard requires which of the following?

A. Periodic Inspection of the Program

B. Management of Change

C. Process Hazard Analysis

D. All of the Above



10

A common fall protection control is the standard guardrail, which consists of which horizontal components:

- A. the midrail
- B. the toe board
- C. the top rail
- D. All of the above



11

A standard that specifies an objective to be applicable for a specific industry is called a:

- A. Design standard
- B. Performance standard
- C. Vertical standard
- D. Horizontal standard



12

Employees have certain rights under the Occupational Safety and Health Act of 1970. Which of the following is NOT an employee right under this act?

- A. The right to have input on the development of standards
- B. The right to be informed about the purpose of an inspection
- C. The right to be informed about imminent dangers by OSHA
- D. Access to accident records



13

What kind of energy must be controlled/isolated or eliminated during maintenance and service?

A. Electrical and hydraulic

B. Stored and potential

C. Thermal and chemical

D. Latent and reserve



14

The two types of fall protection systems are:

A. Arresting and positioning

B. Active and passive

C. Nets and personal fall arresting systems

D. Retractable and drop line



15

According to OSHA HAZCOM; who has the responsibility to determine if a material is hazardous?

A. Safety Professional

B. Employer

C. Employee

D. Manufacturer



16

What are the Employee rights concerning the abatement date of an OSHA violation?

- A. Appeal the abatement date
- B. Agree the abatement date
- C. Decide the abatement date
- D. No relation